DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 4, 2026

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346

Plaintiff's Motion to Compel EXPRESS's Compliance with Discovery Order

<u>TENTATIVE RULING</u>

The Parties are to appear.

DISCOVER BANK vs. MARIA CECILIA OCAMPO
Case No. CL25-03879

Plaintiff's Motion for Summary Judgment

<u>TENTATIVE RULING</u>

Plaintiff CAPITAL ONE, N.A., successor by merger to original plaintiff DISCOVER BANK, moves for summary judgment on its complaint alleging breach of contract against Defendant MARIA CECILIA OCAMPO.

The court has not received opposition to the motion.

Legal Standard. A plaintiff may move for summary judgment on the basis that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) A plaintiff's summary judgment motion meets his burden of showing there is no defense to his cause(s) of action if the plaintiff proves each element of the cause(s) of action. (Code Civ. Proc.,

§437c, subd. (p)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp*. (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid*.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subd. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker*, *supra*, 3 Cal.3d at p. 181.)

The affidavits of the moving party are strictly construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Parker*, *supra* 3 Cal.3d at p. 181.) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Elements of Causes of Action. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

Plaintiff's undisputed material facts establish that Plaintiff provided Defendant a line of credit on which Defendant incurred charges. (Plaintiff's Undisputed Material Facts ("UMF") #1-3.) Defendant is obligated to repay Plaintiff for credit used. (UMF #1-2.) Plaintiff sent Defendant regular monthly statements of the account, which were not disputed. (UMF #4-5.) Defendant has defaulted on payments for the line of credit. (UMF #6-7.) Defendant owes $22,087.32 on the line of credit. (UMF #8.)

These undisputed material facts establish every element of Plaintiff's cause of action for breach of contract. Defendant does not raise a triable issue of material fact in response as Defendant has filed no opposition and raises no independent evidence.

Conclusion. Plaintiff's unopposed motion for summary judgment is granted.

BANK OF AMERICA N.A. vs. STELLA MALL
Case No. CL25-06057

Motion by Defendant to Set Aside Default and Default Judgment

<u>TENTATIVE RULING</u>

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

A proof of service for a summons that complies with statutory requirements creates a rebuttable presumption that service was proper. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025), §4:362, p. 66. "A declaration of service by a registered process server establishes a rebuttable presumption that the facts stated in the declaration are true." 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group), §4:367, p. 66, citing Evidence Code §647.

One of the manners of service authorized for summons and complaint is substituted service. C.C.P. §415.20(b) authorizes substituted service by delivery if a copy of summons and complaint to the dwelling place of the person intended to be served, leaving it "in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age", and thereafter mailing another copy to that same address, addressed to the person intended to be served.

Plaintiff has submitted evidence of valid substitute service. (Plaintiff's exhibits one and two.) The Court notes that the address where substitute service occurred is the same address that Defendant uses in filing the instant motion.

Defendant's declaration to the motion to set aside is insufficient to rebut the presumption that the service was proper. Defendant's declaration states that there was no personal service but fails to challenge proper substitute service.

Similarly, Defendant fails to set forth any other valid grounds to set aside and vacate default.

Defendant's motion to set aside default and default judgment is therefore denied.

TOWER NT, LLC vs. TANNER'S LEANFEAST 1, LLC; ET AL.
Case No. CU24-01197

LEANFEAST and TANNER's Motion for Compel Plaintiff's Further Responses to Requests for Production

TENTATIVE RULING

Defendants TANNER'S LEANFEAST 1, LLC and FRANCIS CARL TANNER IV ("Moving Defendants") move to compel Plaintiff TOWER NT, LLC to further respond to seven requests for production. This matter concerns alleged failure to pay rent on a commercial lease. Moving Defendants state that the material they seek to discover relates to Plaintiff's attempts to mitigate its damages from Moving Defendants' alleged nonpayment of rent.

The court first considers the adequacy of the moving parties' efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Moving Defendants' counsel's attached declaration states that Moving Defendants' counsel served the discovery requests at issue on March 11, 2026 and received Plaintiff's responses thereafter (Plaintiff's declaration states responses were served April 28, 2026). (Declaration of Noah Phillips in Support of Motion to Compel Further Responses to Requests for Production at ¶¶ 2-3].) Moving Defendants' counsel sent Plaintiff a meet and confer letter on April 30, 2026. (*Id*. at ¶¶ 6-7, Exhibit A.) On May 8 Plaintiff's counsel told Moving Defendants he would try to obtain the desired records via an informal process. (*Id*. at ¶ 11.) Moving Defendants filed the instant motion on May 11, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

Moving Defendants' meet and confer efforts were inadequate. While Moving Defendants' meet and confer letter properly explained the simple problem Moving Defendants perceived with Plaintiff's responses, Moving Defendants did not give Plaintiff an appropriate chance to address deficiencies. On May 8 Plaintiff stated it would attempt to obtain the material Moving Defendants sought but Plaintiff filed the instant motion only three days later rather than wait to see what Plaintiff delivered.

Though meet and confer efforts are assessed by the state of affairs prior to the filing of a motion to compel the court further observes that developments subsequent to filing illustrate the potential for informal resolution here. Plaintiff states that Moving Defendants were provided information and Plaintiff inquired if Moving Defendants were satisfied; Moving Defendants stated they were not but still did not attempt to resolve outstanding disputes informally, instead choosing to continue with this prematurely filed motion.

Moving Defendants' motion is denied on the basis of insufficient meet and confer efforts pre-filing.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

<u>TENTATIVE RULING</u>

On the Court's own motion, the motion to compel is continued to August 25, 2026 at 9:00 a.m. in Department Seven.

YVONNE GARCIA; ET AL. vs. PRIME ASCOT, LP
Case No. CU25-05130

Motion to Strike

TENTATIVE RULING

Defendant Prime Ascot, LP's motion to strike is granted without leave to amend.

Although Defendant's motion is untimely, having been filed after the filing of an answer (Code Civ. Proc. § 435(b)(1); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913; *Adohr Milk Farms, Inc. v. Love* (1967) 255 Cal.App.2d 366, 371), the court may "at any time in its discretion", strike out all or part of any pleading it deems to be not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court (Code Civ. Proc. § 436(b)).

Punitive damages may be awarded for the breach of an obligation not arising from contract if the defendant is guilty of oppression, fraud, or malice. (Civ. Code § 3294(a).) Without actual intent to cause injury, both malice and oppression require despicable conduct carried out in conscious disregard of the rights of others. (Civ. Code § 3294(c); *Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Despicable conduct" is conduct that is so "vile, base, contemptible, miserable, wretched or loathsome" that it causes the type of outrage often associated with crime. (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 332.) Punitive damages may be imposed for a landlord's failure to repair. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 920.)

An employer may not be held liable for punitive damages based on the actions of an employee "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are award or was personally guilty of oppression, fraud, or malice." (Civ. Code § 3294(b).) If the employer is a "corporate employer", the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be by an officer, director, or managing agent of the corporation. (*Ibid*.)

A plaintiff must plead specific facts to show entitlement to punitive damages. (*Today's IV v. Los Angeles County Metro. Transp. Auth.* (2022) 83 Cal.App.5th 1137, 1193; *Noonan v. Rousselot* (1966) 239 Cal.App.2d 447, 453.) Conclusory characterizations of a defendant's conduct as intentional, willful, or fraudulent are insufficient. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

The court cannot conclude that malice or oppression cannot be established as a matter of law. Plaintiffs alleged that they notified the property managers of the rodent infestation on numerous occasions. (Complaint, ¶¶ 17, 20, 22.) The property managers only provided Plaintiffs with mouse traps, with instructions to place the traps around the property. (*Id*. at ¶¶ 18, 20.) Although the property managers were notified that the traps were ineffective in controlling the infestation and informed that the situation was causing Plaintiffs “extreme distress and anxiety”, the property managers did not obtain professional pest control services and did not take any other action to remedy the infestation. (*Id*. at ¶¶ 19-23, 25.)

However, Plaintiffs fail to allege any facts supporting the conclusory allegation that Defendant “consented to, approved, affirmed, and ratified each and every action taken by the PROPERTY MANAGER”. (Complaint, ¶ 8.) The complaint expressly alleged that Defendant “hired multiple property managers … to manage the SUBJECT PROPERTY” and that it was the responsibility of these property managers to “hire[] outside contractors to make repairs”. (*Id*. at ¶ 7.) Plaintiffs alleged that they notified the property managers of the infestation and it was the property managers who gave them the traps and instructions to place the traps around their unit. (*Id*. at ¶¶ 17, 20.) Consequently, any liability of Defendant for punitive damages would be as an employer. But, there is no allegation establishing that Defendant had actual knowledge of, or any cause to suspect, the existence of the rodent infestation, the conduct of the property managers in merely supplying mouse traps for the tenants to place around the property, the lack of efficacy of the traps in controlling the infestation, or the “extreme distress and anxiety” suffered by Plaintiffs.

The court notes that Defendant’s claim that it is a corporate employer is not supported by the allegations of the complaint and Defendant failed to present any judicially noticeable material establishing Defendant’s corporate character. Plaintiffs alleged that Defendant “is a business entity, form unknown”. (Complaint, ¶ 3.) At best, the court could reasonably infer from Defendant’s name that Defendant is a limited partnership. Defendant cites no legal authority holding that a limited partnership qualifies as a “corporate employer”.

Despite generally requesting leave to amend, Plaintiffs have not met their burden of showing in what manner they propose to amend the complaint and how the amendment would change the legal effect of the pleading. (*Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1175.)

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Defendant’s Motion to Strike Portions of Plaintiffs’ First Amended Complaint

<u>TENTATIVE RULING</u>

While pleading motions are generally disfavored in class action cases, they can be granted when the requirements for class certification are not met by the plead allegations. Shaw v. Los Angeles Unified School Dist. (2023) 95 Cal.App.5th 740, 760-761.

Thus, the court can consider the merits of this motion to strike, and grant it, but only if it appears the pleadings would not support a later certification of the subject Unauthorized Deductions Subclass.

A complaint in a class action case should provide a definition of a class (or subclass) based on objective characteristics which makes it possible for members of that class (or subclass) to identify themselves as class (or subclass) members.

> [W]e conclude that the functions properly assigned to the ascertainability requirement are best served by regarding a class as ascertainable when it is defined "in terms of objective characteristics and common transactional facts" that make "the ultimate identification of class members possible when that identification becomes necessary." (Hicks, supra, 89 Cal.App.4th at p. 915.) This standard was satisfied here because the class definition provided a basis for class members to self-identify. Noel v. Thrifty Payless, Inc. (2019) 7 Cal.5th 955, 967.

One of the deficient ways of defining a class (or subclass) is by a definition in terms of success on the merits, which are known as "fail-safe classes" (or fail-safe subclasses). Id. at 977, citing *Mullins v. Direct Digital LLC* (7th Cir. 2015) 795 F.3d 654, 659.

The objective term definition of a class (or subclass) avoids the possibility of exposing the defendant to multiple successive lawsuits brought by or on behalf of the same plaintiff(s).

> [A] class proceeding must be maintained in a manner consistent with due process. A class definition framed in objective terms that make the identification of class members possible promotes due process in at least two ways. Such phrasing puts members of the class on notice that their rights may be adjudicated in the proceeding, so they must decide whether to intervene, opt out, or do nothing and live with the consequences. (See Hicks, supra, 89 Cal.App.4th at p. 914 ["[a]scertainability is required in order to give notice to putative class members as to whom the judgment in the action will be res judicata"].) This kind of class definition also advances due process by supplying a concrete basis for determining who will and will not be bound by (or benefit from) any judgment. Allowing a class to be defined in vague terms, by contrast, could blunt any invocation of res judicata by the defendant in subsequent lawsuits brought by persons attempting to relitigate issues decided in the earlier class proceeding. The outcome might resemble that which obtains when the "one-way intervention" condemned by our decision in Fireside Bank v. Superior Court (2007) 40 Cal.4th 1069, 1078 [56 Cal. Rptr. 3d 861, 155 P.3d 268] (Fireside Bank) occurs—the

> defendant could be unfairly exposed to a succession of essentially duplicative class lawsuits (see id., at pp. 1078–1083). Id. at 980-981.

The Court found that the definition provided in that case for the class proposed a sufficiently ascertainable class.

> The phrasing, “All persons who purchased the Ready Set Pool at a Rite Aid store located in California within the four years preceding the date of the filing of this action” is neither vague nor subjective. A member of the class could appreciate from this definition whether he or she is included within it, and thus be in a position to take appropriate steps to protect his or her interests. And the definition makes the res judicata consequences of a judgment clear, creating no ambiguity as to who will and will not be bound by the outcome. (See Daar, supra, 67 Cal.2d at p. 706.) Id. at 987.

In one federal court case, the following class definition was found to be an improper fail-safe class:

> All persons within the United States who received any telephone call from Defendant or its agent/s and/or employee/s to said person's cellular telephone made through the use of any automatic telephone dialing system or with an artificial or prerecorded voice, which call was not made for emergency purposes or with the recipient's prior express consent, within the four years prior to the filing of the Complaint. Pepka v. Kohl's Dep't Stores, Inc. (C.D.Cal. 2016) 2016 U.S. Dist. LEXIS 186402, *2.

The district court in Pepka found that deciding who fell into this proposed class, defined as those suffering violations of the applicable law (the Telephone Consumer Protection Act), would require an evidentiary hearing to determine who was in the class.

> Deciding who fell into Plaintiff's proposed class would "require the Court to engage in an improper merits evaluation to determine who is in the class." Lindsay Transmission, LLC, 2013 U.S. Dist. LEXIS 9554, 2013 WL 275568, at *4. Each potential class member would be subject to a "mini-hearing" on "the merits of each case." Id. Without such a hearing it would be impossible to determine if consent had been revoked and the calls made in violation of the TCPA. Id. at *10-11.

In the present case, Plaintiffs define the Unauthorized Deductions Subclass not by the literal language of the applicable statute (in Pepka, the TCPA).

> All tenants of Defendants’ California properties whose leaseholds terminated between July 16, 2021, and the present, and who had a portion of their security deposit retained for a purpose not authorized by Civil Code section 1950.5(e).

The definition Plaintiffs alleged is even one more step removed from Pepka, by defining the class by referencing one subsection of the applicable statute itself, Civil Code

§1950.5, which if read into the defined subclass prescribes only in general terms what can be lawfully deducted from security deposits. This would make it even harder for layperson potential class members to self-identify by reading this definition in the first amended complaint (they would then also need to find, read and interpret the statute to have any clue as to whether they would be class members).

This ends the inquiry as to whether the definition of the Unauthorized Deductions Subclass is an improper fail-sale definition. It is. Thus, Defendants' motion to strike is granted.

The harder issue is whether to grant the motion with leave to amend, or without.

The parties engaged in a heated dispute over whether deduction of utilities was or was not a category of expenses that by law cannot be properly deducted from a tenant's security deposit by a landlord.

This is still an open question not yet decided by any reported California cases.

Of the non-binding authorities identified by each side in their briefs, the only source which provides any significant discussion of this issue is a federal court case. Phelps v. Air-GP LLC (C.D.Cal. October 6 2025) 2025 U.S.Dist.LEXIS 198628 [district court granted defendants' motion to dismiss such a subclass; held that unpaid payments for certain utilities authorized by lease can be deducted from security deposit, under a theory of "additional rent", and because the four categories identified in Civil Code §1950.5(b) are not exhaustive, because of the "including, but not limited to" language].

In Phelps, the federal district court had a copy of the lease attached to the complaint that it referenced for terms that supported its position that the landlord had a contractual right to payment of certain utilities from the named plaintiff.

While federal district court cases are not binding authority on California courts, the court finds Phelps to be persuasive authority.

Likewise, in the present case, the complaint and first amended complaint attached copies of the leases entered into by each of the two named Plaintiffs, VIDA LARA ("LARA") and DEBRA HARKNESS ("DEBRA").

While neither of the parties discussed these leases in their briefs, the court finds them to be crucial to its decision as to whether to grant this motion with or without leave to amend.

The lease for LARA checked none of the boxes listing different types of utilities that the landlord would pay, and included the following statement:

> You'll pay for all other utilities, related deposits, and any charges, fees, or services on such utilities . . . If any utilities are submetered for the dwelling unit,

> or prorated by an allocation formula, we will attach an addendum to this Lease Contract in compliance with state agency rules or city ordinance.

In the "Special Provisions" part of the LARA Lease, there appears the following typed-in language:

> Owner may apply any payment made by Tenant first toward settlement of any damages, repairs, utilities, late charges, or costs incurred on your behalf, and to any unpaid balance on your account and then to the payment of rent notwithstanding any dates or other direction from Tenant that accompanies any such payment . . . .

One of the documents attached to the LARA Lease was a Utilities and Services Addendum, in which certain specified utilities such as water, sewer and trash services were to be billed by the service provider to the landlord and then allocated to the tenant based on a specified formula.

Another of the documents attached to the copy of LARA Lease is a Water Service Law Additional Information sheet, referencing the water submeter, identified as "used to separately bill tenants for water service". That document, signed by LARA and her cotenants, includes the following provision:

> **Security Deposit.**
>
> We may, at our discretion, deduct an unpaid water service bill from the security deposit during or upon termination of a tenancy, if the last water service bill showing the amount due is attached to the documentation required by Section 1950.5 . . . .

The Lease Agreement for named Plaintiff HARKNESS is different, as some of the boxes for utilities to be provided by the landlord are checked (those for water, wastewater and trash; but those for gas, electricity, master antenna and cable TV are unchecked). The court did not find a lot of the attachments that were present for the LARA Lease, such as the Utilities and Services Addendum regarding prorating of certain types of utilities. However, at the end of the HARKNESS Lease, there appears the same typed-in language about the owner being able to apply any payment made by the tenant first toward settlement of any damages, repairs, utilities, late charges, or costs incurred on the tenant's behalf, and to any unpaid balance.

Unlike Plaintiff LARA, Plaintiff HARKNESS did not expressly allege that utilities were (improperly) deducted from her security deposit.

HARKNESS's claims were limited to the delay in receiving the return of her security deposit.

Thus, neither LARA nor HARKNESS would appear to be proper subclass representatives for an Unauthorized Deductions Subclass amended to be defined as those against whom utilities were improperly deducted from their security deposits.

With there appearing to be no reasonable possibility that Plaintiffs could amend the first amended complaint to allege an Unauthorized Deductions Subclass for tenants against whose security deposits utilities were deducted, the court grants Defendants' motion to strike all allegations regarding the Unauthorized Deductions Subclass without leave to amend.

Defendants have 10 days to file an answer to the remainder of the first amended complaint.

EBONAE WEBB vs. PACE SOLANO INC.
Case No. CU26-00230

Motion to Strike Punitive Damages and Other Irrelevant Allegations from Plaintiffs' Complaint

<u>TENTATIVE RULING</u>

Preliminarily, the court has earlier advised Plaintiff EBONAE WEBB ("WEBB") that the claims she has asserted on behalf of her minor children can only be pursued by appointment of a guardian ad litem, and that this guardian must be represented by a licensed California attorney. Yet WEBB, in pro per (without an attorney) continues to file, or to attempt to file, documents with the court on behalf of the minor children.

Regarding the present motion by Defendants to strike Plaintiffs' complaint, WEBB presented for filing a first amended complaint, apparently in an attempt to render moot the motion to strike. C.C.P. §472(a) authorizes, by the deadline for filing opposition to a motion to strike, a plaintiff to file and serve a first amended complaint without leave of court. However, with no proof of service filed to show timely service of the first amended complaint by that deadline, and the assertion by WEBB still in pro per of claims on behalf of her minor children, without appointment of a guardian ad litem represented by a licensed California attorney, that document was rejected for filing.

WEBB thereafter, after the nine court days before hearing deadline set by C.C.P. §1005(b), filed opposition to this motion to strike. However, as noted, this opposition is late. In addition, no proof of service was filed, to show that a copy of the opposition papers was served on Defendants' counsel. For these reasons, the court has not considered the opposition papers.

A pro per litigant is not entitled to any special consideration.

> Pro. per. litigants are held to the same standards as attorneys. (See Rappleyea v. Campbell (1994) 8 Cal.4th 975, 985 [35 Cal. Rptr. 2d 669, 884 P.2d 126] ["A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation."]; accord, Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1281 [111 Cal. Rptr. 2d 439] (dis. opn. of Bedsworth, J.) [pro pers should not be treated the same, "only different"].) Kobayashi v. Superior Court (2009) 175 Cal.App.4th 536, 543.

Defendants' motion to strike primarily sought to strike all punitive damage allegations in the complaint, and secondarily to strike reference to an Insurance Code statute, and all claims as against Defendant KELLY HANSON ("HANSON").

Civil Code §3294 authorizes recovery of punitive damages upon "clear and convincing" evidence of "oppression, fraud or malice". 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:156, p. 61.

To properly allege punitive damages, a plaintiff must allege specific facts to support them, not merely conclusory words like "oppression, malice or fraud". 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:158, p. 62.

To survive a motion to strike, on a claimed basis of malicious conduct, more than mere negligence or even recklessness in a motor vehicle accident situation must be alleged. A plaintiff must allege facts sufficient to demonstrate "conscious disregard of safety".

> In order to justify an award of punitive damages, the defendant must be guilty of oppression, fraud or malice. He must act with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights. In a personal injury action, conscious disregard of safety is an appropriate description of the animus malus which may justify an exemplary damage award when nondeliberate injury is alleged. Magallanes v. Superior Court (1985) 167 Cal.App.3d 878, 883.

The allegations in the complaint are of a garden-variety motor vehicle accident caused by negligence.

The complaint's allegations of fraud do not adequately support any punitive damage claim. These allegations are not made with particularity, to include the specific facts showing defendant making a knowingly false representation, intended to deceive or induce reliance, causing justifiable reliance and resulting damages. Service by Medallion, Inc. v. Clorox Co. (1996) 44 Cal.App.4th 1807, 1816. There is also no third-party right to sue a tortfeasor's insurer (or a tortfeasor directly) for violation of Insurance Code bad-faith claims settlement practices. Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287, 304-305. Nor does the complaint allege any resulting damages from the alleged post-accident conduct of the Defendants.

The court therefore strikes all punitive damage allegations.

The court also strikes all allegations, and the entirety of the complaint, as to Defendant HANSON.

Defendants' motion included an admission that PACE would be liable for any negligence on the part of FAHEY, the driver involved in the subject motor vehicle accident. Thus, no cause of action against HANSON would be proper for negligent hiring, training, supervising and/or retaining of FAHEY. Diaz v. Carcamo (2011) 51 Cal.4th 1148. Furthermore, it is the employer, not a supervisor, who faces possible liability for the actions of an employee.

> The doctrine of respondeat superior is not applicable to the relationship between a supervisor and his subordinate employees. The supervisor occupies an economic and legal position quite different from that of the employer. It is not the supervisor's work that is being performed, nor does he share in the profits which the employees' conduct is designed to produce. In the usual situation, furthermore, he, like his subordinates, is a wage earner, and he is seldom able to respond in damages to an appreciably greater extent than they. For these reasons, the law has shifted financial responsibility from the supervisor, who exercises immediate control, to the employer, who exercises ultimate control and for whose benefit the work is done. (Bank of California v. Western Union Telegraph Co., 52 Cal. 280, 288-292.) Section 2351 of the Civil Code codifies this principle and has been uniformly interpreted to exempt superior employees from vicarious liability to third persons for the tortious conduct of subordinates. (Hilton v. Oliver, 204 Cal. 535, 539 [269 P. 425, 61 A.L.R. 297]; Handley v. Lombardi, 122 Cal.App. 22, 29 [9 P.2d 867]; Barton v. McDermott, 108 Cal. App. 372, 384 [291 P. 591]; Los Angeles v. Los Angeles Pacific Navigation Co., 84 Cal.App. 413, 419 [258 P. 409]. See, also, Restatement, Agency, section 358(1); Ellis v. Southern Railway Co., 72 S.C. 465, 473 [52 S.E. 228, 2 L.R.A.N.S. 378]; 61 A.L.R. 290.) Malloy v. Fong (1951) 37 Cal.2d 356, 378-379.

See also C.A. v William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 871 [potential liability of school administrators for the negligent hiring or supervision of teachers and guidance counselors because of the existence of a special duty between the administrators and the students]; Taylor-El v. Cisneros (E.D.Cal. 2023) 2023 U.S.Dist.LEXIS 239052, *15 [special duty between supervisor and tort victim must exist for personal liability of supervisor, as "California law does not recognize a general duty of care on the part of supervisors with respect to negligent hiring, retention, or training"].

No potential for liability for HANSON arises out of the 7th cause of action for intentional infliction of emotional distress.

The elements of an intentional infliction of emotional distress cause of action include extreme and outrageous conduct by the defendant causing severe emotional distress. Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 (superseded by statute on other grounds, as stated in *Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 699).

The complaint contains only vague allegations that HANSON "engaged in extreme and outrageous conduct by knowingly making, adopting, and relying on false accusations that Plaintiff fabricated or misrepresented a motor-vehicle collision, despite possessing dispatch recordings and corroborating evidence confirming the collision occurred and was reported" [Complaint, ¶43].

As earlier noted, such post-accident conduct by a supervisor in assessing claims arising of a motor vehicle accident is not actionable.

With no causes of action properly pled against HANSON, the court grants the motion to strike the entirety of the complaint as to claims against her.

The motion to strike is thus granted as stated above, without leave to amend.

With no demurrer filed by the other Defendants to any specific causes of action in the complaint, their answer(s) to the complaint, inclusive of all causes of action alleged against them in the complaint, will be due within 30 days.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlieXJTcGxIVHRXZz09

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